

HOUSE BILL 1649

By Helton-Haynes

AN ACT to amend Tennessee Code Annotated, Title 33,
Chapter 2; Title 38; Title 39; Title 50; Title 63 and
Title 68, relative to Kratom.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-452, is amended by deleting subdivision (a)(3).

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 4, is amended by adding the following as a new section:

- (a) It is an offense to knowingly possess Kratom.
- (b) It is an offense to knowingly manufacture, deliver, or sell Kratom.
- (c) It is an offense to knowingly possess Kratom with intent to manufacture, deliver, or sell Kratom.
- (d) As used in this section, "Kratom" means any part of the mitragyna speciosa plant containing the alkaloid mitragynine or metabolite 7-hydroxymitragynine; any substance or compound obtained by extraction of the mitragyna speciosa leaf; any alkaloid or alkaloid derivative that has been created by chemical synthesis or biosynthetic means that synthetically alters the composition of any Kratom alkaloid or alkaloid derivative; any derivative, analog, or other preparation of Kratom; and any derivative, analog, or other preparation thereof that is substantially chemically equivalent or identical to Kratom.
- (e)
 - (1) A violation of subsection (a) is a Class A misdemeanor.
 - (2)

(A) Except as provided in subdivision (e)(2)(B), a violation of subsection (b) or (c) is a Class C felony.

(B) A violation of subsection (b) or (c) is a Class B felony if the violation involved the delivery or sale of Kratom to a minor from an adult who is at least two (2) years the minor's senior, and who knows that the person is a minor.

SECTION 3. Tennessee Code Annotated, Section 33-2-1404(a)(8), is amended by deleting ", including Kratom".

SECTION 4. Tennessee Code Annotated, Title 38, Chapter 7, Part 1, is amended by adding the following as a new section:

If a county medical examiner's office or regional forensic center is conducting an autopsy on a decedent and the decedent's suspected cause of death is drug overdose, then the county medical examiner shall test the decedent for the presence of Kratom.

SECTION 5. Tennessee Code Annotated, Title 63, Chapter 6, Part 2, is amended by adding the following as a new section:

If a treating physician orders toxicology testing in the following circumstances, then the toxicology testing must include testing for the presence of Kratom:

- (1) Suspected drug overdose; or
- (2) Suspected neonatal abstinence syndrome.

SECTION 6. Tennessee Code Annotated, Title 50, Chapter 9, is amended by adding the following as a new section:

The commissioner of labor and workforce development shall promulgate a rule to add Kratom to the definition of a drug, as defined in § 50-9-103. The rule must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 7. This act is known and may be cited as "Matthew Davenport's Law."

SECTION 8. This act takes effect July 1, 2026, the public welfare requiring it.